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AS AMENDED

By: Coleman

[recall elections - state officers - legislative approval - deadlines - gubernatorial action - vacancies - contest and recount process - codification - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 106 of Title 51, unless there is created a duplication in numbering, reads as follows:

Pursuant to the authorization provided in Section 2 of Article VIII of the Oklahoma Constitution, all statewide elected officers not subject to impeachment pursuant to the provisions of Section 1 of Article VIII of the Oklahoma Constitution, shall be subject to removal from office through a recall election as provided in this act.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 107 of Title 51, unless there is created a duplication in numbering, reads as follows:

1 A. The Legislature may initiate the recall election procedure
2 of a statewide elected officer as provided in Section 1 of this act
3 by:

4 1. Introducing a joint resolution by either the President Pro
5 Tempore of the Senate or the Speaker of the House of Representatives
6 stating the purpose and the reason or reasons for removal;

7 2. Providing a provision in the joint resolution stating a date
8 certain for an election by the citizens of this state to be
9 conducted for the purpose of the recall of the statewide elected
10 officer;

11 3. Obtaining approval of the joint resolution by the
12 Legislature; and

13 4. After approval by the Legislature, filing the joint
14 resolution with the Secretary of State.

15 B. A joint resolution filed for the purposes of this act shall
16 not be subject to regular legislative cutoff dates and shall only
17 contain the subject of one statewide elected office. The joint
18 resolution for this purpose shall not be subject to a gubernatorial
19 veto.

20 C. The Secretary of the State Election Board shall cause
21 ballots to be printed for statewide recall of the statewide elected
22 officer at such time as to ensure delivery of the ballots to county
23 election boards for distribution to the several precinct election
24 boards prior to election day. The election shall be conducted in a

1 manner consistent with the laws on the conduct of elections. A
2 resignation of an officer subject to a recall election prior to the
3 election date specified shall end the process of conducting an
4 election.

5 D. The question to be posed on the ballot is whether the
6 statewide elected official as named shall be removed from the
7 position. The removal of the statewide elected officer shall take
8 effect and be in force upon the approval by a majority of the votes
9 cast on the issue as certified by the State Election Board.

10 A statewide elected officer removed from office pursuant to the
11 recall election provided by this act shall create a vacancy. The
12 vacancy of the statewide elected officer shall be filled by an
13 appointment made by the Governor for the remainder of the term.

14 E. The filing of a contest or petition for recount shall be
15 conducted in the same manner as provided by law.

16 SECTION 3. This act shall become effective November 1, 2025.

17 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
18 March 4, 2025 - DO PASS AS AMENDED
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